

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 01/08/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 10:00 AM CASE NUMBER: C23-02528
CASE NAME: FLUENCE ENERGY, LLC VS. DIABLO ENERGY STORAGE, LLC
HEARING IN RE: INFORMAL DISCOVERY CONFERENCE SET BY THE COURT AS STIPULATED BY PARTIES
FILED BY:
TENTATIVE RULING:

Appearances required (by zoom is sufficient).

Law & Motion

2. 9:00 AM CASE NUMBER: C22-00897

CASE NAME: TIMOTHY ALVEY VS. JAMES WELDON

***HEARING ON MOTION IN RE: ORDER SUBSTITUTING PERSONAL REPRESENTATIVE AND LEAVE TO FILE FOURTH AMENDED COMPLAINT**

FILED BY: ALVEY, TIMOTHY L

TENTATIVE RULING:

The motion is **granted**. The moving papers establish sufficient grounds and there is no opposition. The **proposed Fourth Amended Complaint attached as Exhibit B to the Martinez declaration shall be filed within ten days after notice of entry of the order** granting the motion.

3. 9:00 AM CASE NUMBER: C22-01725

CASE NAME: LONELL SWEARINGTON VS. DONOR NETWORK WEST

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS, SET 2**

FILED BY: SWEARINGTON, LONELL R

TENTATIVE RULING:

Plaintiff moves to compel further responses to requests for production of documents, set two, specifically request Numbers 10 and 12. Request 10 seeks documents that constitute time records for non-exempt employees during the relevant time period. Request 12 is similar. This follows his motion to compel further responses to special interrogatories, set one. The three special interrogatories in question request (1) contact information for all employees during the relevant time period; (2) the number of employees during the period; and (3) the job titles or positions of employees in the same period. The issues are similar in each of the two motions.

The dispute was the subject of an Informal Discovery Conference with the Court on July 10, 2025. The underlying case is a wage and hour putative class action. A prior case, however, *Shweiki v. Donor Network West*, No. MSC20-00073 settled wage and hour claims from January 10, 2016 through August 22, 2022. Mr. Swearington opted out of that settlement, thus his individual claim may proceed. He brings this putative action to address claims accruing after August 22, 2022. Initially, the claims included prior time periods, but counsel ultimately agreed that it covered only post-August 2022 claims. (Regardless of whether counsel is bound by the statement, it is a necessary concession in this case.) The glitch in this effort is that he stopped working for defendant on July 23, 2021, and therefore is not and has never been a member of the class he seeks to represent. Accordingly, he seeks classwide discovery in order to find another class representative.

Plaintiff is entitled to make an effort to find a new class representative. Plaintiff points to cases that have allowed such discovery, including *Best Buy Stores, L.P. v. Superior Court* (2006) 137 Cal.App.4th 772, 774. and *Cash Call v. Superior Court* (2008) 159 Cal.App.4th 273, 284.) In these cases, however, the named plaintiff at one time was a class member, but ceased to be one. Where the plaintiff never was a class member, it has been held that no precertification discovery is permitted. (*First American Title Ins. Co.*, (2007) 146 Cal.App.4th 1564, 1577. (Trial court opinions do not set precedent and will not be considered.) (*Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744; *In re Molz* (2005) 127 Cal.App.4th 836, 845.) Plaintiff points out in reply, however, that the *Shweiki* settlement was not

approved under August 27, 2024, over two years after the complaint in this action was filed. Thus, the pre- post-August 22 distinction did not become critical under August of 2024, rendering this case more like *Best Buy* and *Cash Call* than it is like *First American Title*.

The document requests, however, are much broader than the special interrogatories. While understandably relevant to the merits of the case, they are far too broad to be justified by the search for a new plaintiff. If a new plaintiff is found, the matter will then be different. This motion is **denied**.

Because plaintiff did not prevail on this motion, **sanctions will not be awarded**. Defendant did not seek sanctions, and in any event, each side's position was substantially justified.

4. 9:00 AM CASE NUMBER: C23-02194
CASE NAME: STEPHANIE SENNA VS. DOES 1 THROUGH 10, INCLUSIVE
***HEARING ON MOTION IN RE: FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT (CONTINUED FROM 09.25.25, 10.30.25, 12.04.25 & 12.11.25)**
FILED BY:

TENTATIVE RULING:

Appearances required (by zoom is sufficient), pending submission of signed agreement.

5. 9:00 AM CASE NUMBER: C23-02821
CASE NAME: LESLEY HOWARD VS. LIBERTY ASSOCIATES GROUP, LLC
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT**
FILED BY: HOWARD, LESLEY

TENTATIVE RULING:

Plaintiff Lesley Howard moves for preliminary approval of her class action and PAGA settlement with defendant Liberty Associates Group, LLC.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff on November 6, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. A First Amended Complaint adding PAGA claims was filed on February 5, 2024. A Second amended Complaint was filed on August 21, 2025 (pursuant to agreement of the parties) expanding the claims somewhat. It is the operative complaint.

The settlement would create a gross settlement fund of \$1 million. The class representative payment to plaintiff would be \$10,000. Attorney's fees would be \$333,333.33 (one-third of the settlement). Litigation costs would not exceed \$27,500. The settlement administrator's costs would be up to \$24,000. PAGA penalties would be \$100,000, resulting in a payment of \$75,000 to the LWDA and \$25,000 to the aggrieved employees. The net amount paid directly to the class members would be about \$505,166.67. The fund is non-reversionary. Based on the estimated class size of 2,174, the average net payment for each class member is approximately \$232.

The proposed settlement would certify a class of all current and former non-exempt employees

employed by Defendant during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable.

The proposed settlement provides that checks undelivered or uncashed 180 days after mailing will be voided, and the funds will be provided to the State Controller's Unclaimed Property Fund.

The settlement contains release language covering "any and all causes of action, claims, rights, damages, and penalties under California law that are alleged in the Second Amended Complaint in the action or that could have been alleged based on the facts alleged in the Second Amended Complaint[.]" (Settlement, Par. 3B.) Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal written discovery was undertaken, and a data expert was retained for mediation. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to prepare a lodestar fee estimate for the motion for final approval.

The reasonableness of litigation costs and the settlement administrator's fees will be considered at final approval.

Similarly, the requested representative payment of \$10,000 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

The settlement includes claims made in the May 2, 2025, PAGA notices, which are encompassed in the Second Amended Complaint. Because one set of LWDA notices in question were filed before June 19, 2024, while the other was filed after that date, penalties attributed to the earlier notice must be allocated 25% to the aggrieved employees, while those attributed to the later notice must be allocated 35% to the aggrieved employees. (Labor Code §2699(m), (v)(1).) The parties must agree on

an allocation.

Subject to resolution of the penalty allocation, the Court would find that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval, and grant the motion. **Counsel are directed to appear (by zoom is sufficient) in order to address a schedule for resolving the issue.**

If the motion is granted, counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

6. 9:00 AM CASE NUMBER: C24-00016
CASE NAME: NICHON ROBERSON VS. BL HOMES, INC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR PLTF ROSALYN ENFIELD**
FILED BY:

TENTATIVE RULING:

The motion is **granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.

7. 9:00 AM CASE NUMBER: C24-00016
CASE NAME: NICHON ROBERSON VS. BL HOMES, INC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR PETER ROBERSON**
FILED BY:

TENTATIVE RULING:

The motion is **granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.

8. 9:00 AM CASE NUMBER: C24-00492
CASE NAME: THELMA JACKSON VS. JOHN PAULDING
***HEARING ON MOTION IN RE: CONFIRM AND/OR IMPOSE LIEN ON SHARE OF JOHN AND TIMOTHY PAULDING IN PROCEEDS OF SALE (CONTINUED FROM: 12/11/2025)**
FILED BY:

TENTATIVE RULING:

See line 9.

9. 9:00 AM CASE NUMBER: C24-00492
CASE NAME: THELMA JACKSON VS. JOHN PAULDING
***HEARING ON MOTION IN RE: CONFIRM REFEREE REPORT AND TO ALLOCATE SALE PROCEEDS**

(CONTINUED FROM: 12/11/2025)

FILED BY:

TENTATIVE RULING:

Before the Court is the motion by Partition Referee David W. Martin ("Referee") for an order approving the Referee's Report and allocating and distributing the proceeds of the sale of 5648 Burlingame Avenue in Richmond, Contra Costa County, California.

Referee David W. Martin has provided the Court with an updated and more detailed breakdown of costs and expenses of the allocation of the proceeds.

The Court has considered the statement of offset submitted by Defendant John Paulding. The Court will not grant any of the requested offset amounts. Assuming that they were otherwise proper, John Paulding failed to produce sufficient evidence supporting the amount or actual payment of the requested offset line items.

Defendant Timothy Paulding has submitted written objections about the allocation of the attorney's fees owed to Attorney Endy Ukoha-Ajike. This issue was already ruled on by this court at the December 11, 2025, hearing. Defendant Timothy Paulding has failed to produce sufficient evidence in support of his position.

The Court approves Referee David W. Martin updated proposed order for allocation of the proceeds for the sale of 5648 Burlingame Avenue in Richmond, Contra Costa County, California.

10. 9:00 AM CASE NUMBER: C24-03556

CASE NAME: KILROY REALTY 303, LLC VS. LEROY QUAN

HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER; ORDER FOR ISSUANCE OF WRIT AFTER HEARING

FILED BY: KILROY REALTY 303, LLC

TENTATIVE RULING:

Before the Court are two applications by plaintiff, Kilroy Realty 303, LLC, to attach property. One application seeks property owned by defendant, Sterling M. Enterprises, Inc, DBA Lee's Deli. The other application seeks to attach property owned by individual defendant, Leroy M. Quan.

Subject to the exemptions listed below, and subject to plaintiff posting an undertaking of \$1,133,334.66, the applications are **granted**.

Background

This case arises from a lease agreement dated December 6, 1996. (Declaration of Megan Pusateri in Support of Application, hereinafter "Pusateri Decl.," Ex. 1.) Various amendments were executed and the individual defendant here, Leroy M. Quan, guaranteed performance under a separate agreement. (Pusateri Decl., Ex. 2-8.) Plaintiff landlord filed this legal action approximately one year ago, seeking damages against Sterling M. Enterprises, Inc. for breach of the lease, and against Mr. Quan for breach of the guaranty.

In August 2025, plaintiff filed two applications for right to attach order and order for writ of attachment. Plaintiff seeks to attach property in the amount of \$1,189,730, which includes estimated costs of \$1,000 and attorney fees of \$30,000. (Pusateri Decl., ¶¶14-18.)

The application is opposed by defendants, who argue plaintiff has failed to meet its burden to establish probable validity of its claim. Defendants concede owing \$56,395.34 (Common Area Maintenance or “CAM” charges), but assert that plaintiff regularly collected CAM, but abated or forgave base rent to prevent having a dark storefront. Defendants argue generally defenses such as impossibility and frustration of purpose apply here, given the circumstances surrounding the COVID 19 pandemic. Defendants also argue that Leroy M. Quan’s property is subject to certain exemptions listed in the defendants’ memorandum of points and authorities.

Plaintiff’s reply argues the opposition was filed several days late, causing it prejudice, but (as noted in the sur-reply), pursuant to Code of Civil Procedure, section 484.060(a), the opposition was not due until five court days prior to the hearing and defendants complied with this deadline.

Exemptions

Defendant Leroy M. Quan claims certain exemptions as follows:

- Real property at 3875 Los Arabis Drive, Lafayette, CA 94509
- Real property at 1350 Broadway Street, San Francisco, CA 94109
- Motor vehicle: 2001 BMW 330i – approximate value is \$1,500.00
- 2005 Lexus 330 ES – approximate value is \$2,500.00
- Retirement Account – Leroy Quan’s Fidelity Roth IRA and Rollover IRA
- Retirement Account - Claudia Quan’s Fidelity Roth IRA and Charles Schwab IRA

Plaintiff has filed no opposition to the claim of exemption. Accordingly, the Court’s grant of the present applications is subject to the above exemptions

Standard

Attachment is a pre-judgment creditor’s remedy. Attachment is available in actions based on contract when the plaintiff has suffered damages in a fixed or readily ascertainable amount of \$500 or more. (Code Civ. Proc. § 483.010(a).) A plaintiff may obtain a right to attach if he establishes the probable validity of his claim. (Code Civ. Proc. § 484.090(a)(2).) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Proc. § 481.190; see also *Loeb & Loeb v. Beverly Glen Music, Inc.* (1985) 166 Cal.App.3d 1110, 1120; see *Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1476.)

The application must be executed under oath and include all of the following:

- (a) A statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued.
- (b) A statement of the amount to be secured by the attachment.
- (c) A statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.
- (d) A statement that the applicant has no information or belief that the claim is discharged in a proceeding under Title 11 of the United States Code (Bankruptcy) or that the prosecution of the action is stayed in a proceeding under Title 11 of the United States Code (Bankruptcy).

(e) A description of the property to be attached [...].

(Code Civ. Proc., § 484.020.)

A defendant who opposes a right to attach order must give notice of his objection, “accompanied by an affidavit supporting any factual issues raised and points and authorities supporting any legal issues raised.” (Code Civ. Proc. § 484.060, subd. (a).) The defendant may make a claim of exemption with respect to his property in the opposition. (Code Civ. Proc. § 484.070.)

“Before issuance of a writ of attachment [...] plaintiff shall file an undertaking to pay the defendant any amount the defendant may recover for any wrongful attachment by the plaintiff in the action.” (Code Civ. Proc., § 489.210.)

Discussion

The declaration supporting plaintiff’s applications adequately itemizes damages and references the attached documents, which allow recovery of the stated sum. While defendants allude to various defenses, they do not provide supporting evidence. The opposition argues the defendants were not getting the benefit of the lease agreement, “an 800,000 square foot building filled with workers who could frequent the restaurant,” but defendants do not refer to any provision that explicitly includes such purported benefit.

The opposition further argues defenses such as impossibility and frustration of purpose would apply. As noted in the reply, the Sixth Amendment waived these defenses. To the extent defendants would argue that the Sixth Amendment is not valid due to purported “economic duress” (a contention not supported by evidence), the defenses are not necessarily applicable simply because a lease agreement fails to address them.

The court in *Lloyd v. Murphy* (1944) 25 Cal.2d 48, 53-55, stated, “[e]ven more clearly with respect to leases than in regard to ordinary contracts the applicability of the doctrine of frustration depends on the total or nearly total destruction of the purpose for which, in the contemplation of **both** parties, the transaction was entered into.” (*Ibid.*, internal citations omitted, emphasis added.)

In arguing that plaintiff’s course of performance (forgiving or abating amounts due), defendants generally refer to “the rent ledgers and the amendments,” but fail to submit or cite documents supporting this defense. Instead, defendants speculate that there is “no reason” plaintiff would not have initiated an eviction sooner, apart from waiving its rights to a portion of the rent. This speculation does not defeat the showing made by plaintiff here.

Plaintiff successfully demonstrates probable validity of its claims, and that the claims are ones upon which attachment is proper. (Code Civ. Proc., § 484.090(a)(1)-(2).) The attachment is not sought for purposes other than recovery on the claim, which amounts to a sum greater than zero. (*Id.* at (a)(3)-(4).)

Subject to the statutorily required undertaking, which shall be set at \$1,133,334.66 (\$1,189,730-\$56,395.34), and subject to the exemptions discussed herein as to Leroy M. Quan, **both applications are granted.**

11. 9:00 AM CASE NUMBER: C24-03556

CASE NAME: KILROY REALTY 303, LLC VS. LEROY QUAN

HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER; ORDER FOR ISSUANCE OF WRIT AFTER HEARING

FILED BY: KILROY REALTY 303, LLC

TENTATIVE RULING:

Please see Line 10.

12. 9:00 AM CASE NUMBER: C25-02263

**CASE NAME: THOMAS GODDARD VS. 1910 N. MAIN STREET APARTMENTS CAPITAL LLC, A
DELAWARE LIMITED LIABILITY COMPANY**

**HEARING ON ORDER TO SHOW CAUSE IN RE: PRELIMINARY INJUNCTION SET AT EXPARTE HEARING
ON 08.20.2025 BY THE COURT**

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff Thomas Goddard's Application for TRO and Order to Show Cause for Preliminary Injunction.

Plaintiff's request for a preliminary injunction is **denied**.

Initial Procedural Note

Papers at Issue

Plaintiff appeared *ex parte* on August 20, 2025, seeking a TRO and an OSC regarding a preliminary injunction. Defendants filed an opposition to the TRO request along with a declaration in support. Plaintiff also filed a reply.

On that date, the Court denied the TRO and set the hearing on the OSC for January 8, 2026. The Court also set a briefing schedule indicating that Defendants shall file and serve any opposition papers re the OSC no later than nine court days prior to the hearing – *i.e.* by December 24, 2025. The Court notes that as of the drafting of this tentative ruling, well past the December 24 deadline, no subsequent briefing was filed by Defendants. As such, this ruling is based on the papers submitted by the Parties on August 20, 2025.

Plaintiff's Filings

On a related note, the Court notes that Plaintiff's initial moving papers refer and cite to numerous exhibits. It also indicates that it 'incorporates by reference' the entire case files for four separate cases. (See Memo at Sec. II Incorporation by Reference.) None of the documents identified were actually attached to the filing, nor filed concurrently therewith. A document titled "Exhibit XXXXX For Complaint" was filed on August 19 – which appears to be referenced in the moving papers. After the ruling by the Court on the TRO on August 20, Plaintiff filed three other documents. None of those documents appear to attach the numerous exhibits referenced in the moving papers.

The Court also notes that several of Plaintiff's filings are hundreds of pages long and appear to include duplicate or triplicate copies of the document to be filed. For example, the First Amended Ex Parte Application for TRO filed on August 20, 2025, includes three copies of the same papers. This increases the Court's workload in deciphering Plaintiff's papers.

The Court will not consider papers not filed with the moving papers. Plaintiff shall ensure going

forward that all relevant evidence, exhibits, and arguments are included in a single or concurrent filing. Plaintiff will also ensure that he is only filing a single copy of his papers and will not include duplicate documents.

Legal Citations and Arguments

The Court notes that in reviewing Plaintiff's papers that many of Plaintiff's citations are incorrect and/or misleading. Plaintiff will cite a case for a certain proposition for which it does not stand. More worrisome is Plaintiff's citation to cases which include quotations from the case which do not exist. For example, Plaintiff states: "In *Salute v. Statford Greens Garden Apartments*, 136 F.3d 293, 301 (2d Cir. 1998), the Second Circuit recognized that 'financial need that is a consequence of the disability' must be considered in accommodation analysis." (Ex parte at 5:10-12.) That statement does not appear anywhere in the opinion. Nor does that proposition – so far as the Court has been able to find. In footnote 5, Plaintiff provides another quotation allegedly from the same case – which does not appear anywhere in the opinion.

Other examples include Plaintiff's citation to: *Smith & Lee Associates, Inc. v. City of Taylor* 102 F.3d 781, 795 (6th Cir. 1996) ('Reasonable accommodations must sometimes be made to policies which are generally applicable and facially neutral.');

McKennon v. Nashville Banner Publishing Co., 513 U.S. 352, 358 (1995) (civil rights violators cannot 'take advantage of the very violation to defeat the employee's rights');

Chalk v. U.S. District Court 840 F.2d 701, 707 (9th Cir. 1988) (finding 'strong likelihood of success on the merits' where defendant's policy facially violated federal disability law.);

Sundance Land Corp. v. Community First Federal Savings & Loan 840 F.2d 653, 661 (9th Cir. 1988) ("The Ninth Circuit recognizes that 'threatened loss of one's home constitutes irreparable injury.');

Easley v. Collection Service of Nevada, 910 F.3d 1286, 1291 (9th Cir. 2018) ("documentary evidence of discrimination supports finding of likelihood of success.")

None of the above quotes appear in the cases cited by Plaintiff.

It is sanctionable conduct for a party to submit briefing that contains fabricated quotations and/or fabricated cases. (*Shayan v., Shakib* (2025) 116 Cal.App.5th 619, 624 (citing *People v. Alvarez* (2025) 114 Cal.App.5th 1115; *Noland v. Land of the Free, L.P.* (2025) 114 Cal.App.5th 426.) While those cases involved attorneys submitting improper authority, pro se parties are held to the same standards and must comply with the same rules as attorneys. (*Nuno v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811 ["[J]udges are not required to act as counsel for self-represented part[ies], instead, self-represented litigants "must expect and receive the same treatment as if represented by an attorney – no different, no better, no worse."], quoting *Taylor v. Bell* (1971) 21 Cal.App.3d 1002, 1009.)

Plaintiff shall ensure that all his citations to legal authority actual stand for the proposition asserted and actually contain the quotations attributed to them.

Factual Allegations and Procedural Background

The focus of this matter is a dispute between a tenant (Plaintiff) and his landlord (Defendants). Plaintiff resides at an apartment located at 1910 N. Main Street, Unit 627, in Walnut Creek, California ("Property"). Defendant 1910 N. Main Street Apartments Capital LLC ("1910 Apartments") owns the

Property and Defendant Sares Regis Group Residential, Inc. (“Sares”) manages it.

On March 3, 2025, Plaintiff made a “Reasonable Accommodation Request” seeking to have the due date for his rent moved from the first of the month to the seventh of the month due to the timing of his receipt of SDI benefits. Defendants granted this request. (Richardson Decl. ¶ 4, Ex. A.) Despite this accommodation, Plaintiff missed making his rent payments in a timely manner. Defendants engaged in communications with Plaintiff regarding the late payments.

Due to Plaintiff’s continued failure to pay rent, Defendants served him with a 3-day notice to pay or quit on July 10, 2025. That same date, Defendants sent a letter to Plaintiff encouraging him to continue to engage in a dialogue regarding his payment of rent. Plaintiff responded the same day by requesting that his rent be reduced from \$2,850/month to \$400/month.

Thereafter, on July 14, 2025, Plaintiff filed a Complaint against Defendants (and two individuals) in Federal District Court alleging violations of the Federal Fair Housing Act, Civil Rights Act, ADA, and California’s Unruh Act. (Truong Decl. ¶ 2, Ex. 1.) The basis of the Federal Case tracks the issues in the instant case – alleged discrimination related to Plaintiff’s request for an accommodation regarding rent. The Federal Court issued a limited TRO on July 16. On August 13, 2025, the Federal Court held a hearing regarding Plaintiff’s request for a preliminary injunction. The Court denied the request and lifted the TRO. (Truong Decl. ¶ 1, 4; Ex. 4.) On that same date, Plaintiff immediately filed a motion for reconsideration as well as an appeal to the Ninth Circuit. (*Id.* at ¶ 3.)

On August 15, 2025, Plaintiff filed the Complaint in this instant matter. The Complaint alleges twelve causes of action. Notably, the first (Fair Housing Act – disability discrimination), third (fair housing Act – retaliation), and fifth (Unruh Civil Rights Act) causes of action are also alleged in the Federal case cited above.

On November 17, 2025, Defendant 1910 Apartments initiated an unlawful detainer action against Plaintiff. On December 8, 2025, Plaintiff filed a First Amended Complaint adding three more causes of action.

Standard

Generally, the ruling on an application for preliminary injunction rests in the sound discretion of the trial court. (*Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1450.) In deciding whether to issue a preliminary injunction, a court must weigh two “interrelated” factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction. (*Butt v. State of California* (1992) 4 Cal. 4th 668, 677-678.) This determination is made on a sliding-scale such that “the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.” (*Id.* at 678.) “However, ‘[a] trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is a possibility that the plaintiff would ultimately prevail on the merits of the claim.’” (*Ibid.*)

“The power to issue preliminary injunctions is an extraordinary one and should be exercised with great caution and only where it appears that sufficient cause for hasty action exists.” (*West v. Lind* (1960) 186 Cal.App.2d 563, 565.) They should only be issued when there is a “clear showing that the threatened and impending injury is great, and can be averted only by injunction.” (*Western Electroplating Co. v. Henness* (1959) 172 Cal.App.2d 278, 283.)

The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O'Connell v. Sup.Ct. (Valenzuela)* (2006) 141 Cal. 4th 1452, 1481.)

Analysis

Relief Sought Not Available

To begin with, it appears that Plaintiff cannot obtain much of the relief he is seeking since the actions he is seeking to be restrained have already occurred. For example, Plaintiff seeks an order preventing Defendants from initiating or prosecuting any unlawful detainer action against Plaintiff. As noted above, Defendant 1910 Apartments already initiated an unlawful detainer action against Plaintiff.

Other actions requested by Plaintiff also appear to already be in place without the Court's order. For instance, Plaintiff requests an order preventing Defendants from accepting his rent payments on the 7th of each month and imposing a late fee if paid by that date. The evidence presented shows that Defendants already agreed to that accommodation. Despite that agreement, it appears that Plaintiff has failed to make any payment of rent since that time.

Likelihood to Prevail

Initially, as to the three causes of action noted that are also asserted in the Federal Action, it appears that this Court does not have jurisdiction to rule on those claims. "The established rule of exclusive concurrent jurisdiction provides that where two or more courts possess concurrent subject matter jurisdiction over a cause, the court that first asserts jurisdiction assumes it to the exclusion of all other courts. In essence, the rule renders concurrent jurisdiction exclusive with the first court." (*County of Siskiyou v. Superior Court* (2013) 217 Cal.App.4th 83, 89 citing *Franklin & Franklin v. 7-Eleven Owners for Fair Franchising* (2000) 85 Cal.App.4th 1168, 1175.)

As noted by Defendants, the basis of most of Plaintiff's claims is the allegation that Defendants denied him a reasonable accommodation regarding his inability to pay rent on time – which was discriminatory. The evidence, however, shows that Defendants did in fact grant his initial accommodation request. As noted above, Plaintiff submitted a request indicating that he be given an accommodation to pay his rent on the 7th of each month, instead of the 1st, without incurring a penalty. This was due to the timing of his receipt of SDI payments. The Defendants granted this accommodation, writing to Plaintiff: "We agree to allow you to pay your rent on the 7th of each month. We will waive the \$75 late fee and refrain from serving a 3-day notice if your rent is paid by the 7th." (Richardson Decl. Ex. A.) Thereafter, Plaintiff failed to make any payment for rent. (Richardson Dec. ¶ 5.)

To the extent that Plaintiff is arguing that his additional request to lower his rent from \$2,850 to \$400 a month is the basis for his claims, this Court agrees with the assessment of the Federal Court which addressed this argument in Plaintiff's request for a preliminary injunction there:

"However, the record before this Court shows that Defendant accommodated Plaintiff's initial request to extend his grace period for rent payments. Plaintiff then sought to reduce his rent by over 85%, which Defendant denied. Plaintiff has presented no authority, and the Court is aware of none, holding that an 85% reduction in rent is a 'reasonable accommodation' under the ADA. Indeed, the Ninth Circuit has held that denial of 'meaningful access' to a program due to a person's inability to 'satisfy a condition of eligibility because of his financial circumstances' is not a violation of the ADA. See *Weinreich v. Los Angeles Cnty. Metro. Transp. Auth.*, 114 F.3d 976, 979 (9th Cir. 1997). (Truong Decl. Ex. 4.)

Regarding the claim for religious discrimination, Plaintiff has failed to show that anyone associated with the Defendant has acted in a manner to support his claims. All the allegations related to the alleged religious discrimination claims related to statements alleged made by Shabnam Amiri – who is described as the Property Manager in the Complaint. Plaintiff presents no additional evidence showing that Ms. Amiri works for Defendants.

Defendants submit the declaration of Tammy Richardson, who is the Regional Property Manager for Defendant Sares and who manages the Property. Ms. Richardson makes clear that no person named Shabnam Amiri currently works for, or has ever worked for, Defendants and that she is “not aware of any affiliation with this person as an employee or resident.” (Richardson Decl. ¶ 10.) Defendants also note that Plaintiff indicated in his motion for a preliminary injunction filed in the Federal Case that Ms. Amiri is Plaintiff’s ex-girlfriend. (Truong Decl. Ex. 2.)

As for the breach of habitability and quiet enjoyment claims, the Complaint is unclear as to the basis for those claims. It appears that Plaintiff’s claims rest on his claim that Defendants intend to evict him in violation of his rights. This appears to be based on the service of the 3-day notice to quit. As outlined above, Defendants were entitled to serve the 3-day notice to quit based on Plaintiff’s continued failure to pay rent. As such, this act cannot form the basis for such causes of action. It is also worth noting that the service of a 3-day notice to quit is generally considered a privileged action. (See e.g. *Feldman v. 1100 Park Lane Associates* (2008) 160 Cal.App.4th 1467, 1480.)

Likewise, Plaintiff’s emotional distress and constructive eviction claims appear to rely on Defendant’s protected activity in serving a 3-day notice to quit. To the extent they are premised on the alleged religious discrimination, those claims are addressed above – and indicate that Plaintiff has failed to show that Defendants are the source of Plaintiff’s alleged harassment.

Based on the above, Plaintiff has failed to meet his burden to show that he is likely to prevail on the merits of his claims. The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O’Connell, supra*, 141 Cal. 4th at 1481.) An injunction will not issue if it appears the plaintiff will not prevail. (*SB Liberty, LLC v. Isla Verde Ass’n, Inc.* (2013) 217 Cal.App.4th 272, 280.)

No Showing of Irreparable Harm to Plaintiff

The court may “deny a preliminary injunction *either* (1) on its finding irreparable injury will not result to the party seeking the injunction, or (2) that the party has failed to demonstrate a reasonable probability of success on the merits.” (*Jessen v. Keystone Sav. & Loan Ass’n* (1983) 142 Cal.App.3d 454, 459.)

“The showing of potential harm that a plaintiff must make in support of a request for preliminary injunctive relief may be expressed in various linguistic formulations, such as the inadequacy of legal remedies or the threat of irreparable injury [cite], but whether the choice of words it is clear that a plaintiff must make some showing which would support the exercise of the rather extraordinary power to restrain the defendant’s actions prior to a trial on the merits.” (*Tahoe Keys Property Owners’ Assn. v. State Water Resources Control Bd.* (1994) 23 Cal.App.4th 1459, 1471.) “In general, if the plaintiff may be fully compensated by the payment of damages in the event he prevails, then preliminary injunctive relief should be denied.” (*Ibid.*; see also, Cal. Code Civ. Proc. § 526 (a)(4) [“An injunction may be granted in the following cases: (4) When pecuniary compensation would not afford adequate relief.”].

Plaintiff appears to argue that the irreparable harm he will suffer is homelessness if he is evicted from his apartment. The possession of the Property, however, is not at issue in this matter. That is the focus of the currently pending unlawful detainer action. As noted by the Federal Court, "Plaintiff will have the opportunity to assert his rights and defenses," including his ADA claims, in that action.

The prayer for relief in the operative First Amended Complaint does not seek any order related to the possession of the Property. Instead, it seeks compensatory damages (§ 125), statutory damages (§ 126), punitive damages (§ 127) and 'injunctive relief' (§ 128). The injunctive relief sought includes: (1) institutional reforms to accommodation policies; (2) fair housing training for all employees; (3) monitoring of civil rights compliance; and (4) remediation of hostile environment.

By way of this complaint, Plaintiff is principally seeking damages and all the claims made therein – if proved – can be fully compensated via an award of damages. Accordingly, Plaintiff has failed to show that he will be irreparably harmed if a preliminary injunction does not issue.

Conclusion

"The power to issue preliminary injunctions is an extraordinary one and should be exercised with great caution and only where it appears that sufficient cause for hasty action exists." (*West*, supra, 186 Cal.App.2d at 565.) They should only be issued when there is a "clear showing that the threatened and impending injury is great, and can be averted only by injunction." (*Western Electroplating Co.*, supra, 172 Cal.App.2d at 283.) The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O'Connell*, supra, 141 Cal. 4th at 1481.)

Plaintiff has failed to meet his burden to show that a preliminary injunction should issue. For all the reasons set forth above, Plaintiff's request is **denied**.

13. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO DAVID J. DICKENS FOR PLTF RICHARD CLASEN
FILED BY: CLASEN, COLLEEN R.
TENTATIVE RULING:
Granted.

14. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO STACHIA REUWSAAT FOR DEF SYNGENTA
FILED BY: SYNGENTA AG
TENTATIVE RULING:
Granted, subject to submission of proof that the application was submitted to the State Bar.

15. 9:00 AM CASE NUMBER: MSC18-00956
CASE NAME: EUBANKS VS YAPSTONE
***HEARING ON MOTION IN RE: RE: COMPLIANCE HEARING**
FILED BY:

TENTATIVE RULING:

The Settlement Administrator's declaration shows that the settlement terms have been implemented. No further proceedings are contemplated.

16. 9:00 AM CASE NUMBER: MSC21-02036

CASE NAME: PEOPLE OF CA VS. CORTEVA INC

***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANTS RESPONSES AND PRODUCE DOCUMENTS**

FILED BY: PEOPLE OF THE STATE OF CALIFORNIA EX REL. MEREDITH WILLIAMS, DIRECTOR OF THE CALIFORNIA DEPARTMENT OF TOXIC SUBSTANCES

TENTATIVE RULING:

Plaintiff People of the State of California, ex rel. Katherine M. Butler, Director of the California Department of Toxic Substances Control (DTSC) moves to compel further discovery responses from Defendants Corteva, Inc. Dow Agrosiences, LLC, and Corteva Agriscience, LLA (Corteva) and E.I. du Pont de Nemours and Company (DuPont).

Since the filing of the motion, the scope of the motion has been narrowed somewhat. The motion is withdrawn as to DuPont. As to Corteva, the motion seeks to compel further responses to Form Interrogatory Nos. 12.1 and 15.1; Special Interrogatories Nos. 1, 4, 5, 7-10, 12-15, 18, 20, 24-34, and Requests for Production of documents Nos. 1-5, 7, 9, 12-50, and 54, and to comply with previous agreements to produce documents in response to requests Nos. 10, 11, 13, 48, 49, and 53, and provide a privilege log. Corteva has agreed to supplement its responses, specifically Form Interrogatories number 12.1 and 15.1, while withdrawing its 8th, 17th, 18th, 24th, and 25th affirmative defenses. It will supplement its responses to Special Interrogatory No. 7, and produce the Site Water Balance document referred to in response to Special Interrogatories No. 12-14, 18, 20, 24, and 26. Corteva would produce amended responses within 30 days of the hearing on the motion. (DTSC wants the supplemental responses by January 13, 2026.)

As a general matter, Corteva argues that the scope of DTSC's discovery requests are beyond the scope of the "limited" issues in the case. This is not apparent to the Court, especially given the broad scope of discovery permitted by Code of Civil Procedure section 2017.010.

Corteva objects to some of the discovery (Requests for Production Nos. 1-5, 7, 9, 10, 13-50, and 54) on the ground that responses were provided in response to discovery requests from intervenor Communities for a Better Environment (CBE). While this may be a reason why counsel, in the interest of efficiency, might agree to avoid duplicative discovery, it is not a valid objection to the requests. Assuming, however, that the documents were produced electronically, the burden on Corteva of producing additional electronic copies of the documents in question is not great. Moreover, DTSC contends that there is only some overlap with the CBE discovery and that the responses to the CBE discovery were not adequate.

The Court notes that to the extent Corteva argues that it does not have some of the documents requested, this may be the basis for a response of "inability to comply" in compliance with Code of Civil Procedure section 2031.230, which enables the responding party to state that, "a diligent search

and a reasonable inquiry has been made[.]” The statement also must “specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer in the possession, custody, or control of the responding party.”

The Code permits responses to interrogatories that refer to documents, but only under limited circumstances. Code of Civil Procedure section 2030.230 provides that where an answer “would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained.” This does not permit a response to an interrogatory of “see the documents.” The documents must be specified, and the burden of making the summary must be “substantially the same” for each party.

The Court describes these general requirements for discovery because it appears that nearly all of the issues in the motion arise from Corteva and DTSC’s differences over the general scope of discovery. Given the Court’s general guidance—which likely would lead to granting DTSC’s motion at least in large part—the parties are directed to meet and confer over the remaining issues in the pending motion. **The matter is continued to February 5, 2026, at 9:00 a.m.** The parties are to file a joint statement indicating the matters that have been resolved and the matters that remain unresolved (if any), no later than January 29, 2026.

17. 9:00 AM CASE NUMBER: MSC21-02213
CASE NAME: WANG VS JOHN MUIR MEDICAL
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: JOHN MUIR MEDICAL GROUP A CALIFORNIA CORPORATION
TENTATIVE RULING:
Off calendar. Matter settled.

18. 9:00 AM CASE NUMBER: MSL17-00218
CASE NAME: HERRERA VS GOSAIN/HAPPY VALLEY
***HEARING ON MOTION IN RE: COMPEL ACKNOWLEDGMENT OF SATISFACTION OF JUDGMENT**
FILED BY: HAPPY VALLEY ROAD,LLC
TENTATIVE RULING:
Granted. The moving papers establish that the requirements are met, and there is no opposition.

19. 9:00 AM CASE NUMBER: N25-1381
CASE NAME: PETITION OF:JANE DOE
HEARING ON PETITION IN RE: FOR ORDER FOR RELIEF FROM REQUIREMENT TO PRESENT CLAIM
FILED BY: DOE, JANE
TENTATIVE RULING:
See line 22.

20. 9:00 AM CASE NUMBER: N25-1381

CASE NAME: PETITION OF:JANE DOE

HEARING ON PETITION IN RE: ORDER FROM RELIEF FROM REQUIREMENT TO PRESENT CLAIM (N25-1382)

FILED BY:

TENTATIVE RULING:

See line 22.

21. 9:00 AM CASE NUMBER: N25-1381

CASE NAME: PETITION OF:JANE DOE

HEARING ON PETITION IN RE: FOR ORDER FOR RELIEF FROM REQUEST TO PRESENT CLAIM (N25-1384)

FILED BY:

TENTATIVE RULING:

See line 22.

22. 9:00 AM CASE NUMBER: N25-1381

CASE NAME: PETITION OF:JANE DOE

HEARING ON PETITION IN RE: FOR ORDER FOR RELIEF FROM REQUIREMENT TO PRESENT CLAIM (N25-1385)

FILED BY:

TENTATIVE RULING:

Introduction

Before the Court is Petitioners' Claims of Estate of O.Y., Claims of A.Y., Claims of W.Y., Wrongful Death Claims of A.Y. and W.Y. Motion for Relief from the Government Claims Presentation requirement.

The Court rules that **all four of Petitioner's government claims were filed timely. Accordingly, the petition is granted.**

Factual Background

On January 8, 2022, City law enforcement officers responded to a domestic disturbance report at 2201 San Jose Drive, Apt E203, Antioch, CA 94509, where O.Y. (at that time still alive), and her brother, Petitioner W.Y., resided with their biological parents, Jessika Fulcher ("Mother Fulcher") and Warren Young, Sr. ("Father Young"). ("Petition for Order for Relief from Requirement to Present Claim (Gov. Code § 946.6)," In Re Claim of the Estate of O.Y. v. City of Antioch, et al., Case No. N25-1382 ("Petition"), 1 Ex. 1, p. 1.) During this visit, the law enforcement officers allegedly witnessed indications that O.Y. and Petitioner W.Y. were unsafe and subject to abuse. Yet, the agents allegedly failed to report this discovery to Contra Costa County Child Protective Services ("CPS"), as purportedly required by the Child Abuse and Neglect Reporting Act ("CANRA"). (Petition, Ex. 1, p. 1.)

At the time of this domestic disturbance report, O.Y. and Petitioner W.Y. were wards of the juvenile court, and subject to an ongoing juvenile dependency action in this Superior Court, due to concerns of abuse and neglect by their biological parents. (Petition, Ex. 3, ¶ 4.) Several months later, in April 2022, this Superior Court closed the dependency case, and the biological parents resumed full legal authority over O.Y. and Petitioner W.Y. (Petition, Ex. 3, ¶ 4.)

On May 8, 2022, Petitioner A.Y. was born to Mother Fulcher and Father Young. (Petition, p. 5, n. 2.)

Approximately six weeks later, on June 28, 2022, City law enforcement officers responded to another domestic disturbance report at the same address. During this visit, the law enforcement officers allegedly again witnessed indications that O.Y., Petitioner W.Y., and now Petitioner A.Y., were all unsafe and subject to abuse. Nonetheless, despite these alleged signs of neglect and abuse, the agents purportedly failed again to report their findings to CPS. (Petition, Ex. 1, p. 1.)

Two months later, on August 25, 2022, City law enforcement officers and other emergency personnel responded to a “911” call made by Mother Fulcher, concerning the health of O.Y. Noting suspicious injuries to the child, medical professionals notified CPS of the matter. Later that same day, CPS removed O.Y.’s siblings from the custody of their biological parents. (Petition, Ex. 3, ¶¶ 76-79, 86.) The next day, August 26, 2022, O.Y. died due to her injuries. (Petition, p. 5.) On April 20, 2023, at the conclusion of a second dependency hearing, this Superior Court determined not to reunify Petitioners A.Y. and W.Y. with their biological parents. (Petition, Ex. 3, ¶ 88.) Instead, this Superior Court granted guardianship of the surviving siblings to their foster mother, Jane Doe. (Petition, Ex. 3, ¶ 88.) On July 10, 2024, Jane Doe formally adopted both Petitioner A.Y. and Petitioner W.Y. (Petition, pp. 5-6.) On April 30, 2025, this Superior Court appointed Jane Doe as the special administrator of Petitioner O.Y. Estate. (Petition, Ex. 4.)

Procedural Background

Pending Federal Litigation

On August 14, 2024, Attorney Schreiber filed a single, civil complaint in the Federal Court on behalf of Petitioners A.Y. and W.Y. (Petition, p. 3, Ex. 3.) The pleading raised the same general allegations as the amended GCA demand; and named several public entities and public employees as defendants, including the City. (Petition, Ex. 3, ¶¶ 15-24.) It further identified Jane Doe as the surviving sibling’s guardian ad litem. (Petition, Ex. 3, ¶¶ 13-14.) The action raised several federal claims under title 42, United States Code section 1983 (“Section 1983”), Petition, Ex. 3, ¶¶ 92-122; as well as several California state law claims, Petition, Ex. 3, ¶¶ 123-164. In bringing the State law claims, Petitioners A.Y. and W.Y. pled that they had fulfilled the GCA presentation requirement by submitting the amended GCA demand. (Petition, Ex. 3, ¶¶ 29-32.)

On September 23, 2024, the City filed a motion in the Federal Court to dismiss each of the claims raised against it in the federal litigation. (RJN, No. 4, Ex. D, p. 1.)

On January 7, 2025, the Federal Court granted the surviving siblings’ intervening request to dismiss without prejudice the federal Section 1983 claim; but otherwise, granted the City’s motion to dismiss with leave to amend. (RJN, No. 4, Ex. D, pp. 1-2.)

2023 Government Claims Act Demand

On or about August 25, 2023, Brett J. Schreiber, Esq., of Singleton Schreiber, LLP (“Attorney Schreiber”) presented a single “omnibus” GCA demand to the City on behalf of Petitioners A.Y., W.Y., and the Estate of O.Y. The demand raised claims of abuse and wrongful death on behalf of the surviving siblings, as well as a survival/pre-death pain-and-suffering claim on behalf of the estate. For the estate claim, the demand asserted that Petitioners A.Y. and W.Y. were the “personal representatives” of the

legacy. (Resp. City of Antioch's Request for Judicial Notice ("RJN"), No. 1, Ex. A.)

On September 14, 2023, the City sent a notice of insufficiency in response to the GCA claim on grounds that it failed to include statutorily required information. (RJN, No. 2, Ex. B.)

On or about September 29, 2023, Attorney Schreiber presented an amended GCA demand to the City; again, on behalf of Petitioners A.Y., W.Y., and O.Y. Estate. Jane Doe authorized Attorney Schreiber to present this amended demand. (Petition, p. 6.) The amended demand read, in pertinent part:

On or about August 26, 2022, a minor child O.Y. who was the older sibling to Claimant A.Y. and younger sibling to Claimant W.Y. died as a result of systematic failures of officers and employees of the City of Antioch, CA. ...

As a result of a series of breaches of mandatory duties and state-created danger, minor child O.Y. and her two siblings, W.Y. and A.Y., were allowed to continue in the care of their biological parents despite employees and/ or officers of the City of Antioch being aware for quite some time that the minor children were in danger within the parental home and subject to consistent abuse and neglect. ...

Claimants will seek damages for the wrongful death of their sibling O.Y. since they are the proper parties with standing to bring such claims. Similarly, as personal representatives to the Estate of O.Y., the Claimants will seek recovery for her pre-death pain and suffering. A conservative estimate for a lifetime loss of a sibling and for the pre-death pain and suffering of a child far exceeds >\$25,000 (unlimited civil claim). (RJN, No. 3, Ex. C, p. 3.)

The District did not respond to this amended demand; and as such, it was deemed rejected by operation of law, on or about November 13, 2023. (Gov't. Code § 912.4, subds. (a), (c).)

2024 Government Claims Act Demand

On December 6, 2024, Attorney Schreiber presented the City three, additional GCA demands on behalf of Petitioners; each accompanied by an application to present the late claims:

1. A GCA demand on behalf of Petitioner A.Y. seeking damages for the personal injuries she allegedly suffered from purported abuse by her biological parents, RJN, No. 7, Ex. G [Exhibit 1];
2. A GCA demand on behalf of Petitioner W.Y. seeking damages for the personal injuries he allegedly suffered from purported abuse by his biological parents, RJN, No. 5, Ex. E [Exhibit 1]; and
3. A GCA demand on behalf of Petitioners A.Y., W.Y., O.Y. Estate, with the surviving siblings personally seeking damages for the alleged wrongful death of their sister, and additionally seeking damages on behalf of the estate in their "personal representative capacity" for the personal injuries suffered by O.Y. prior to her death, RJN, No. 8, Ex. H [Exhibit 1].

For all practical purposes, this second round of "separate" GCA demands are substantively identical to

the original, “omnibus” 2023 administrative claim, but for providing additional, factual detail. For example, the new GCA demand presented on behalf of Petitioner W.Y. reads, in pertinent part:

On January 8, 2022, Officers Robert Ibanez and Shawn Marquez of the Antioch Police Department, and other currently unknown officers and/ or employees of the City of Antioch, responded to a domestic disturbance report at 2201 San Jose Drive, Apt E203, Antioch, CA 94509, where Claimant resided with his biological parents and younger sister, O.Y. At this time, Claimant was a ward of the juvenile court and subject to an ongoing juvenile dependency action due to concerns of abuse and neglect by his biological parents. Despite indications that Claimant and O.Y. were unsafe and subject to abuse by the biological parents, the officers failed to cross-report these suspicions to Child Protective Services, as mandated under California's Child Abuse and Neglect Reporting Act (CANRA).

On June 28, 2022, Officers Kyle Smith and Shane Cole of the Antioch Police Department, and other currently unknown officers and/ or employees of the City of Antioch, responded to another domestic disturbance report at the same address at 2201 San Jose Drive, Apt E203, Antioch, CA 94509. Despite further indications that Claimant, O.Y., and now their newborn sister, A.Y., were unsafe and subject to abuse by the biological parents, the officers failed to cross-report these suspicions of child abuse to Child Protective Services, as required by CANRA. (RJN, No. 5, Ex. E, p. 1.)

The other two, new GCA demands read similarly. (RJN, No. 7, Ex. G [Exhibit 1]; No. 8, Ex. H [Exhibit 1].) Thus, where the original, “omnibus” 2023 GCA demand vaguely alleged “a series of breaches of mandatory duties and state-created danger,” the subsequent, “separate” 2024 GCA demands provide more detail as to the mandatory duties which were allegedly violated.

On January 9, 2025, the City denied each of the “separate” GCA demands as untimely; and further denied the related applications to present the late claims. (RJN, No. 5, Ex. E [Exhibit 2]; No. 7, Ex. G [Exhibit 2]; No. 8, Ex. H [Exhibit 2].)

Legal Standard

Pursuant to Govt. Code §§ 905, 910 and 911.2, a claim against a public entity for money or damages for death or for injury to person or to personal property shall be presented within six months after the accrual of the cause of action.

Govt. Code 911.4 provides:

(a) When a claim that is required by Section 911.2 to be presented not later than six months after the accrual of the cause of action is not presented within that time, a written application may be made to the public entity for leave to present that claim.

(b) The application shall be presented to the public entity as provided in Article 2 (commencing with Section 915) within a reasonable time not to exceed one year after the accrual of the cause of action and shall state the reason for the delay in presenting the claim.

The proposed claim shall be attached to the application.

(c) In computing the one-year period under subdivision (b), the following shall apply:

(1) The time during which the person who sustained the alleged injury, damage, or loss as a minor shall be counted, but the time during which he or she ... does not have a guardian or conservator of his or her person shall not be counted.

Pursuant to Govt. Code § 945.4: "Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented ... until a written claim therefor has been presented to the public entity and has been acted upon by the board."

Govt. Code 946.6 provides:

If an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4. ...

...

(c) The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and that one or more of the following is applicable:

...

(3) The person who sustained the alleged injury, damage, or loss was a minor during any of the time specified in Section 911.2 for the presentation of the claim, provided the application is presented within six months of the person turning 18 years of age or a year after the claim accrues, whichever occurs first.

...

(6) The person who sustained the alleged injury, damage, or loss died before the expiration of the time specified in Section 911.2 for the presentation of the claim.

For minors, accrual is based not on the minor's knowledge, but on that of a parent or guardian legally capable of representing the minor's interests. (*Whitfield v. Roth* (1974) 10 Cal3d 874, 885.) If the minor has no such representative, his deadline to present an application to file a late claim is tolled. (*County of L.A. v. Sup. Ct.* (2001) 91 Cal.App.4th 1303, 1313.) "A trial court has broad discretion in ruling on a petition for relief from the claim-filing requirement as long as the issue is whether the late claim was presented within a 'reasonable time' not to exceed one year after the accrual of the cause of action." (*Ibid.*) Where a minor's youth and immaturity prevent him from recognizing the wrongfulness of his abuse, courts have applied the equitable delayed discovery rule to toll accrual of

the deadline to present a government claim. (*Curtis T. v. County of L.A.* (2004) 123 Cal.App.4th 1405, 1422-1423.)

The court in *County of L.A.* explained with respect to minors that are in foster care:

“[The m]inors' parents had no legal right to custody and control of Minors [during the pendency of] the dependency case Officially, as dependent minors, Minors' legal custody and control was in the hands, metaphorically speaking, of the juvenile court, and, practically speaking, the juvenile court simply cannot personally monitor all the needs of the many dependents under its custody and control. It relies on the County, through the DCFS to discharge that function. It is patently obvious, however, that DCFS, as the department of County responsible for the proper care of Minors, was not a proper agency to ... investigate and consider whether to file litigation against such agency.” (*County of L.A. v. Sup. Ct.* (2001) 91 Cal.App.4th 1303, 1310.)

“[Prior] cases only penalize minors under the care of an authorized representative, in other words, a parent or a guardian, when such representative has knowledge concerning the claim but fails to present the claim within the one-year limitation period of section 911.4.” (*Id.* at 1316.)

“[C]ases that indicate that the Legislature intends to accord special solicitude to the claims of an injured minor by requiring courts to protect minors from the neglect or ignorance of the adults in charge of their legal claims ‘so long as the application is filed with the entity within one year of the accrual of the cause of action,’ and so long as there is actually an adult specifically charged with protecting the minors' overall interests above all else. ... this holding is in keeping with the Legislature's recent amendment of section 911.4 ... that recognizes the special problems faced by minors who are dependents of the juvenile court during the time that they may have reason to file a tort claim.” (*County of L.A. v. Sup. Ct.* (2001) 91 Cal.App.4th 1303, 1316.)

In proceeding on a petition for relief, the petitioner bears the burden of proving two elements by a preponderance of the evidence: first, that his or her application to the public entity for leave to file a late claim was presented within a reasonable time, not to exceed that specified in subdivision (b) of Section 911.4; and second, that one of four statutory grounds on which the court may grant relief is present. (*Rivera v. City of Carson* (1981) 117 Cal.App.3d 718, 723.)

Analysis

Petitioner's Government Claims Were Timely Filed from the Outset

Petitioners seek to recover damages for the wrongful death of their minor sibling, O.Y. Petitioners allege that damages arose, in part, from the state created danger and breaches of the mandatory duties set forth in the California Child Abuse and Neglect Reporting Act (CANRA) caused by Respondent City of Antioch and the Antioch Police Department because officers failed to take appropriate action in response to signs of abuse and neglect. As a result, the minor children remained in their biological parents' custody where they continued to suffer physical abuse and neglect. On August 26, 2022, O.Y. died due to the abuse. That same day, Petitioners were removed from the

custody of their biological parents. The causes of action for the alleged damages accrued the day O.Y. passed away on August 26, 2022.

2024 Government Claims

Petitioners contend that their December 9, 2024, government claims were timely presented pursuant to the equitable delayed discovery rule. This Court agrees.

For minors, accrual is based not on the minor's knowledge, but on that of a parent or guardian legally capable of representing the minor's interests. (*Whitfield v. Roth* (1974) 10 Cal.3d 874, 885.) If the minor has no such representative, his deadline to present an application to file a late claim is tolled. (*County of L.A. v. Superior Court* (2001) 91 Cal.App.4th 1303, 1313.)

On the date of O.Y.'s death, Petitioners became juvenile court dependents and were without a parent or guardian legally capable of representing their interests in a civil action until their eventual adoption. (Exhibit 3, at ¶ 32.) Although Jane Doe learned of Respondent's liability prior to Petitioners' adoption, she lacked legal authority to initiate a wrongful death lawsuit on their behalf until the adoption.

Jane Doe did not adopt AY and WY until July 10, 2024. On that date, Jane Doe became the first legally authorized representative with both the knowledge and capacity to initiate legal action on Petitioners' behalf. (Koh Decl. at ¶ 3.) Petitioners' three government claims for A.Y., W.Y., and A.Y. and W.Y.'s joint claim for wrongful death of their sibling were filed five months later on December 9, 2024. Petitioners' December 9, 2024, government claims were submitted timely.

2023 Government Claim

Petitioners contend that their September 29, 2023, government claim was timely presented pursuant to the equitable delayed discovery rule. This Court agrees.

The same tolling argument explained above applies to the 2023 government claim submitted on behalf of A.Y. and W.Y. for the wrongful Death of their sibling O.Y., through their foster parent at the time, Jane Doe. (Koh Decl., at ¶ 2.) In this case, the government claim was submitted before the end of the tolling period when Jane Doe adopted A.Y. and W.Y. on July 10, 2024.

No Overlap with the Federal Court Motion to Dismiss

Respondent City of Antioch posits that Petitioners seek a "second bite of the apple" to improperly effectuate a motion for reconsideration with the Federal Court. (Oppo at p. 7: 4-5.) The Court is not convinced.

As mentioned above, on January 7, 2025, the Federal Court granted the surviving siblings' intervening request to dismiss without prejudice the federal Section 1983 claim; but otherwise, granted the City's motion to dismiss with leave to amend. (RJN, No. 4, Ex. D, pp. 1-2.) The ruling regarding the City of Antioch's Motion to Dismiss focused on issue of standing of siblings A.Y. and W.Y. for their survival claim and the sufficiency of the pleading of Petitioners' 42 U.S.C. § 1983 state created danger claim. Notably the Federal Court did not substantively address the government claim presentation issue, although it did have a subsection titled "Compliance with the California Tort Claim Act" describing the

facts alleged in the Complaint. (See Resp.'s RJN, No. 4, Ex. D, p. 8.)

Jane Doe Does Not Need to File a Separate Claim with the City

Respondent City of Antioch argues that at no point has Jane Doe ever presented a GCA demand, nor an application to file a late claim with the City. (Oppo at p. 9: 6-7.) Yet Respondent makes this argument in the context of the individual claims of A.Y. and W.Y. and the joint claim for both A.Y. and W.Y. to prosecute their own wrongful death claims. Since Jane Doe is filing the claims on behalf of her adopted children A.Y. and W.Y. and as the special administrator to the Estate of the Decedent O.Y., the Court does not find it necessary for Jane Doe to file a GCA demand in her individual capacity if she is not seeking damages for herself.

Conclusion

For the reasons analyzed above, Court rules that **all four of Petitioner's government claims were filed timely. Accordingly, the petition is granted.**